ARRANGEMENT OF SECTIONS

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IT is hereby notified that the Minister responsible for Local Government has, in terms of section 229 of the Urban Councils Act [*Chapter 29:15*], approved the following by-laws:—

Title

1. These by-laws may be cited as the Plumtree Town (Fishing) by-laws 2025.

Interpretation

2. (1) In these by-laws—

"Council" means the Plumtree Town;

"dam" means any dam or water source within the Council area.

(2) Any reference in these by-laws to—

(a) an applicant for permission to fish in, or take fish from, a dam; or

(b) a person to whom such permission has been granted;

shall include, where such applicant or person is an association of persons, a member of such association.

Permission to fish

3. (1) No person shall fish in, or take fish from, a dam unless he or she has been granted permission to do so in terms of subsection (3) and he or she complies with the terms and conditions of such permission.

(2) Any person who, or association of persons which wishes to fish in, or take fish from, a dam shall apply to Council in writing for permission to do so and, where permission is sought to fish in, or take fish from, more than one dam, shall make a separate application in respect of each dam.

(3) On receipt of an application together with an application fee, in terms of subsection (2), Council may—

(a) grant written permission to the applicant to fish in, or take fish from, the dam or dams concerned, subject to these by-laws and to such terms and conditions as the Council may specify in the permission; or

(b) refuse to grant permission to the applicant, if—

(i) permission has already been granted to other persons or associations of persons, and the granting of permission to the applicant would, in the opinion of the Council, unduly deplete the fish population in the dam or dams concerned; or

(ii) the Council is not satisfied that the applicant has conducted himself or herself in the past, or will at all times conduct himself or herself in the future, in a manner calculated not to disturb the peace and quiet of the area and additionally, or alternatively, its natural flora and fauna; or

(iii) the Council is satisfied that the applicant has contravened or failed to comply with these by-laws or with any term or condition subject to which permission was previously granted in terms of this subsection.

(4) Permission granted in terms of subsection (3) shall remain in force for such period as may be specified therein.

(5) Any person or association shall pay quarterly permit fees as specified in the First Schedule.

(6) If the Council refuses to grant permission in terms of subsection (3) it shall, at the request of the applicant, inform the applicant of the reasons for the refusal, and the applicant may appeal in writing against the refusal.

(7) On an appeal in terms of subsection (6), the Council shall afford the applicant an opportunity to make representations, in writing, or orally as the Council may determine; and may—

(a) dismiss the appeal;

(b) grant permission to the applicant in terms of subsection (3), subject to such terms and conditions as the Council may specify.

(8) Subject to subsection (9), the council may at any time revoke any permission granted in terms of subsection (3) if the Council—

(a) considers that the revocation is necessary to prevent undue depletion of the fish population in the dam or dams concerned; or

(b) is satisfied that the person to whom the permission was granted has not conducted himself on one or more occasions in a manner calculated not to disturb the peace and quiet of the area and additionally, or alternatively, its natural flora and fauna; or

(c) is satisfied that the person to whom the permission was granted has contravened or failed to comply with these by-laws or with any term or condition subject to which the permission was granted.

(9) Before revoking any permission in terms of subsection (8), the Council shall notify the person concerned that it proposes to do so and shall afford that person a reasonable opportunity to make representations in the matter, either in writing or orally as the Council may determine.

Fishing seasons

4. (1) The Council after consultation with National Parks, in the event of controlled waters in terms of section 84 of the Parks and Wildlife Act [*Chapter 20:14*] may, by notice publish in a newspaper circulating in the area in which the dam or dams concerned are situated, fix a period or periods during which it shall not be lawful—

(a) to fish in or take fish from any one or more of the dams; or

(b) to fish for any specified species of fish in any one or more of the dams; or

(c) to take any such species of fish from any one or more of the dams;

and the council may in like manner repeal or amend any such notice.

(2) No person shall fish in, or take any fish from, a dam in contravention of a notice published in terms of subsection (1).

(3) It will be the duty of every person to whom permission to fish has been granted in terms of section 3, before fishing on a dam, to acquaint himself or herself with the terms of every notice published in terms of subsection (1).

(4) Any person who catches any species of fish during a period when it is not lawful to do so shall be liable to a fine specified in the Second Schedule.

Restrictions as to fishing tackle

5. No person shall fish in any dam using—

(a) any fishing-gear other than a rod and line or hand-line to which—

(i) not more than three single hooks are attached; or

(ii) not more than one conventional lure is attached, having not more than three single or three double or three treble hooks; or

(iii) more than two rods at any one time; or

(iv) use at any dam nets exceeding 2 000 metres in length.

Registration of aquaculture activities

6. No person shall engage in aqua-cultural activities for commercial purposes without registration with the Council.

Powers of police officers and council employees

7. (1) A police officer or a council employee or any agent duly authorised by the Council, who finds a person in the vicinity of a dam which in such circumstances as to afford reasonable grounds for believing that the person is or has been fishing in the dam, may require that person—

(a) to give his/her name and address; and

(b) to furnish evidence of—

(i) having been granted permission in terms of section 3 to fish in the dam; or

(ii) membership of an association of persons that has been granted permission in terms of section 3 to fish in the dam; or

(iii) his or her having been lawfully admitted to the vicinity of the dam;

as may be appropriate in the circumstances; and

(c) to produce for the inspection of the police officer or council employee—

(i) any fish; and

(ii) any fishing tackle, bait, net, machine, instrument or appliance for taking or destroying fish;

that is in that person's possession or in the possession of any employee or agent.

(2) Any person who has been required to give, furnish or produce anything in terms of subsection (1) shall forthwith comply with the requirement.

(3) Any person who fails to give, furnish or produce anything in terms of subsection (2) will be liable to a fine specified in the Second Schedule.

FIRST SCHEDULE

FEES

Section	Description	Fees (US$)
3	Application for a fishing permit	$0,00
3	Fishing permit fees (quarterly)	$0,00

SECOND SCHEDULE

PENALTIES

Section	Description	Penalty (US$)
3	Fishing without permit	$0,00
4	Fishing in contravention of fishing season notice	$0,00
5	Fishing using prohibited tackle	$0,00
6	Failure to register aqua-cultural activities	$0,00
7	Failure to give, furnish or produce to authorised officer	$0,00